

Case, Dale

From: Bart Lorang <lorangb@gmail.com>
Sent: Saturday, September 2, 2023 3:53 PM
To: Case, Dale
Cc: Sarah Lorang
Subject: [EXTERNAL] Re: CEMEX Plant Upgrades Follow Up
Attachments: Oxygen Enrichment - Cement Review - May 2001.pdf; Visual Evidence of New Structures - CEMEX Lyons - September 2023.pdf

Hi Dale,

Thanks again for meeting with us. A few items of note I'll add to Sarah's comments:

- We spoke to Jeremy Nichols Friday evening; he is willing to connect with you and Sarah will make that connection early next week. Jeremy did confirm that in the EPA Case there wasn't really any dispute by either party as to whether the plant upgrades occurred and much of the evidence came from the EPA's own investigations of the facility.
- Jeremy and the EPA both informed us that CEMEX claimed details of the late 1990s Lyons Expansion Project to be "Confidential Business Information" - or CBI. CEMEX legal team clearly didn't want this information to be public given its implications, and they've done an *excellent* job redacting and expunging this information from public court records. This could explain why you're having trouble accessing this information easily.
- Despite those best efforts, we were able to find the [attached article](#), written and published in 2001 by John W. Lohr, the former Southdown/CEMEX Plant Manager, detailing some of the Oxygen plant upgrades from the 1990s, along with photos of the accessory structures they added to the Lyons Plant. I'm certainly no expert, but given the obvious hazards of using pure oxygen gas in industrial use cases, I'm surprised that Boulder County would not want/need some level of inspection, permitting or oversight to allow this type of construction project to occur. A mere two months ago, [a cement plant in India had three fatalities from an oxygen explosion](#).
- While the CBI related to the Plant Expansion is not available to the public at present, it may be made available to you as part of a Boulder County investigation. I would suggest you reach out to the EPA directly - we were pointed to Scott Patefield, the Manager of EPA Region 8 Air and Toxics Enforcement Branch. If you have additional questions about CEMEX, he can be reached at: Patefield.Scott@epa.gov or 303-312-6248.
- Lastly, we put together the attached PDF documenting some new structural additions CEMEX has made for your review using a simple comparison of two photos at different points in time. I hope you find helpful.

Thanks Dale, have a great weekend!

Bart

On Tue, Aug 29, 2023 at 12:48 PM Sarah Lorang <lorang.sarah@gmail.com> wrote:

Hi Dale,

Thank you again for taking the time to meet with Bart and I last week; we know how busy you are and really appreciate the time and candid conversation.

Related, I didn't want you to think I forgot about introducing you to [Jeremy Nichols](#) regarding some more detailed information on the technical nature of the plant upgrades. Apparently Jeremy has, in fact, moved on from WildEarth Guardians. Ironically, he left sometime earlier this month. I left him a voicemail though, and sent emails to his replacement at WEG, as well as their legal team to see if they might be able to help. The organization he was with when

he filed the lawsuit was Rocky Mountain Clean Air Action, and it technically 'merged' with WEG, so I am hoping they might have some information to share. I will let you know as soon as I hear back from any of them.

I also reached out to two individuals at the EPA who were deposed in the EPA case against CEMEX asking if they might be able to help with details about the upgrades also. I'll let you know if they respond, but who I reached out to is below. I suspect Peter might have retired by now, but neither email bounced.

- Emilio Llamozas, EPA Environmental Engineer
 - p: 303.312.6407
 - e:llamozas.emilio@epa.gov
- Peter Westlin, EPA Office of Air Quality Planning and Standards
 - p: 919.541.1058
 - e: westlin.peter@epamail.epa.gov

Last, I spent some time researching what the upgrades described in the EPA's NOV might entail, practically speaking. It is attached. It seems like there are some obvious areas to hone in on, which I highlighted in yellow. While I am definitely not an expert, I hope you find it helpful.

Please don't hesitate to reach out with questions, or to let me know if there is anything I can do to help!

Thank you again for all of your help,
Sarah Lorang

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